CAPaD - Awakening Democracy
The Canberra Alliance for Participatory Democracy

Submission to Joint Standing Committee on Electoral Matters (JSCEM) Inquiry into the 2025 federal election

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Thank you for the opportunity to make a submission to the Joint Standing Committee on Electoral Matters (JSCEM) Inquiry into the 2025 federal election.

The **Canberra Alliance for Participatory Democracy** (CAPaD) is a volunteer community charity, working to make government in Australia function more democratically by helping people find ways to participate in politics and representatives to help people participate.

We submit in relation to:
Extra ToR 1: the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election; and
Extra ToR 3: "the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate".

Summary

Regarding the implementation and operation of the electoral reform passed by the 47th Parliament
We request therefore that the government, as soon as practicable and well before 1 July 2026, legislate amendments that exempt ACNC registered charities from the restriction on using all sources of revenue for federal electoral expenditure.

Regarding the composition of the Parliament as a whole, including:
the length of the parliamentary term;
While CAPaD hasn't a firm opinion on the length of parliamentary terms, CAPaD submits that on balance retention of a three-year term at the federal level is likely to be the most practicable option until a more in-depth revision of Australia's constitution is carried out.

the potential for fixed terms;
CAPaD thinks the arguments for fixed terms, namely the protection of the Government through guaranteed tenure; assuring the requisite amount of time for effective governance and in-depth analysis of complex policy issues; more systematic servicing of the electorate by local members; a reduction in the number of elections and ancillary costs (both monetary and administrative); and more effective planning of the parliamentary timetable, outweigh the arguments for retaining flexibility that is subject to political expediency.

the number of elected representatives relative to the growth in population and the electorate
CAPaD supports the Increase in the number of MPs, both Senators and MHRs, to both enhance citizen participation in the political system by improving representation (community access through improved ratio of residents to MPs enabling MPs to have relatively more time in their electorates) and improving the talent pool available to fill ministries and committees.

An increase in Senators for the Territories to make Territorians representation more equitable with States is due.

Submission

Regarding the implementation and operation of the electoral reform passed by the 47th Parliament
We support the aspects of the legislation that seek to reduce the potential for undue influence by wealthy individuals and other vested interests into Australia's political process.
We, however, deplore that charities have been unintendedly limited in their capacity to advocate for beneficial outcomes in their sector by the restriction of using all sources of income for electoral expenditure. This is a totally unnecessary restriction that does not appreciate the way that charitable organisations work.
We also are concerned at the administrative burden and possible financial and time cost of needing to maintain a specific federal election account. While this may not be a large impact to large charities, for smaller charities who just exceed the $20,000 expenditure limit the burden may be significant.
We request therefore that the government, as soon as practicable and well before 1 July 2026, legislate amendments to the Electoral Legislation Amendment (Electoral Reform) Act 2025 to exempt ACNC registered charities from the restriction on using all sources of revenue for federal electoral expenditure.

Regarding the composition of the Parliament as a whole, including:
the length of the parliamentary term;
CAPaD hasn't a firm opinion on the length of parliamentary terms. Various term lengths apply in different jurisdictions around the world. In Australia, a three-year term operates at the Federal level while four-year terms exist at State and Territory levels.

The Susan McKinnon Foundation research carried out by Mandala suggests a number of direct and indirect cost benefits in moving to four-year terms. They estimate a saving of $59 to 71 billion over 20 years.(Mandala, 2025, The value of shifting to your-year parliamentary terms from https://mandalapartners.com/uploads/The-value-of-shifting-to-four-year-parliamentary-terms-Mandala.pdf, accessed 2/10/25).

"The Committee reviewed a range of opinions supporting a move to a longer term for the House of Representatives:

- improved policy-making;
- increased business confidence;
- reduced cost of elections;
- improved debate; and
- voter dislike of frequent elections."

(The Joint Standing Committee on Electoral Matters, 2005, Report on the Inquiry into the Conduct of the 2004 Federal Election and Matters Related *The 2004 Federal Election*. Chapter 7 7.45 Parliamentary terms,

https://www.aph.gov.au/Parliamentary_Business/Committees/Joint/Completed_Inquiries/em/elect04/chapter7 accessed 2/10/25)

Arguments for retaining three-year terms include better ability to hold MPs accountable. In Australia the three-year House of Representatives terms is related to the constitutional requirements for Senate elections. However fewer other arguments exist for retaining three-year terms. The discussion in the 2005 JSCEM Report covers this area well.

CAPaD submits that on balance retention of a three-year term at the federal level is likely to be the most practicable option until a more in-depth of Australia's constitution is carried out.

the potential for fixed terms; and
Having fixed terms of parliament of whatever length seems to be more important but is related to the length of terms.
The 2055JSCEM Report again covered this well. It notes:
"7.70 Some of the identified benefits of a fixed term Parliament include: the protection of the Government through guaranteed tenure; assuring the requisite amount of time for effective governance and in-depth analysis of complex policy issues; more systematic servicing of the electorate by local members; a reduction in the number of elections and ancillary costs (both monetary and administrative); and more effective planning of the parliamentary timetable.
7.71 Further, members of the business community are in favour of fixed term elections as they provide a more certain environment within which to make long term business decisions. The introduction of fixed terms would mean that business were not in 'an electoral cycle of uncertainty every two or so years'."
That Report also notes some contrary observations:
"7.72 There are, however, a number of issues associated with fixed terms that arguably preclude its successful operation in the Australian Federal system.
7.73 Most importantly, fixed terms are often supported because it is argued that they minimise the opportunity for political manoeuvring.
7.74 A shift to a fully fixed term Federal Parliament in Australia would change the character of the Parliament.
7.75 It is also argued that fixed term elections could help reduce the cost of campaigning, because there would be a clearly defined period for campaigning here[sic] are suggestions, however, that flexible election dates result in shorter and cheaper election campaigns. For example, the final year of the fixed Presidential term in the United States system appears to be characterised by significant formal campaigning for a long period of time. This is in contrast to the Australian experience, where formal election campaigning does not commence until the election is called, allowing only six weeks of intensive campaigning."
CAPaD thinks the arguments for fixed terms outweigh the opposing ones.

the number of elected representatives relative to the growth in population and the electorate
CAPaD supports the Australia Institute position:
"*9. Increasing the number of parliamentarians*
Two increases in the number of parliamentarians are overdue:
a. The ACT has almost as many residents as Tasmania, and the Northern Territory's population is about half that of Tasmania's. However, the territories currently receive only one sixth as many senators as Australia's smallest state. An increase in the number of both territories' senators would make elections more proportional.
b. Even as Australia's population has increased dramatically, the number of politicians has not. This

leaves MPs stretched over larger areas, means the talent pool for ministries and committee chairs is too shallow, and makes MPs less attentive to local concerns".
(The Australia Institute, 2025, Agenda for the 48th Parliament, https://australiainstitute.org.au/report/democracy-agenda-for-the-48th-parliament/, accessed 7 March 2025)

CAPaD strongly supports the increase in the number of Senators for the two mainland Territories which would improve the representative fair share that the Territory people have in the Senate compared to the States.

Conclusions

Regarding the implementation and operation of the electoral reform passed by the 47th Parliament
In this term of parliament the government has the opportunity to retain charities capacity to do their essential advocacy work in parallel to service delivery by legislating amendments to the Electoral Legislation Amendment (Electoral Reform) Act 2025 in order to exempt ACNC registered charities from the restriction on using all sources of revenue for federal electoral expenditure. We urge the government to pursue this urgently.

Regarding the composition of the Parliament as a whole, including:
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CAPaD supports the Increase in the number of MPs, both Senators and MHRs, to both enhance citizen participation in the political system by improving access, and improving the talent pool available to fill ministries and committees. An increase in Senators for the Territories to make Territorians representation more inline with States is due.

Thank you for the opportunity to make a submission.

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Peter Tait
Convener